



DELAYED JUSTICE: Convicts in the court premises; (left) policemen stand guard during riots elections to come. Almost all those sentenced belong to intermediary Koeri caste. Said Pravin Singh, secretary of Bihar Congress, "While Nitish Kumar would wean away Muslims from Yadav through the Logain verdict, the BJP would strengthen its roots in the region by opposing it." Bharatiya Janata Yuva Morcha's State Coordinator Mrinal Shekhar says the hype over Logain conviction has made people restless. "All the evidence should be reviewed to maintain social harmony," he says. However, Dr Farooq Ali, professor at Bhagalpur University and coordinator of social groups handling the problems related to riots and rehabilitation, feels the hype has been created keeping the 2009 Lok Sabha polls in mind.

The sloppy pace of the trial during the Lalu-Rabri regime was capitalised by the BJP which gained considerably in the last elections. In the Lok Sabha polls, BJP's Sushil Modi, now deputy chief minister, had wrested the Bhagalpur seat from Yadav's RJD. The party later fielded Syed

Shahnawaz Hussain who won the by-election hands down thus sowing the seeds of a new social combination. But giving a new twist to the trials, the Vishwa Hindu Parishad has declared it would fight on behalf of the convicts in higher courts.

Political overtone in the whole incident was also evident from the fact that a number of people and political activists of various hues had thronged the Bhagalpur District Court premises while the villagers and relatives surrounded the police van that carried 13 of the 14 convicts from Central Jail to the court to receive sentences. One of the accused Jaiprakash Mandal had bolted on June 18, the day the court convicted them, but he too was slapped life-term in absentia.

The Logain carnage was the worst in a series of communal killings and the trial and conviction of the alleged killers was allowed to drag only to keep Yadav's Muslim-Yadav combine intact. But the arrival of Nitish heralded significant changes. He posted G.N. Sharma as special DIG in Bhagalpur to speed up trial in the riot-

related cases, rehabilitate the victims, help those who were denied compensations and take the trial to a logical conclusion. Earlier, a Commission of Inquiry, headed by Justice (retired) N.K. Singh, was constituted to probe the "lapses committed by the investigating agencies, book the accused and suggest a rehabilitation package for the victims at par with the Centre's package given to victims of 1984 anti-Sikh riots". Nitish has also been pressing Prime Minister Manmohan Singh to come forward to help the Bhagalpur riot victims.

There is a belief now that like Yadav, Nitish too is playing caste-religion politics to gain ground. Dr Ali feels that Nitish has created another commission that would not only take its own time but would also help him and his ally BJP in time for the next elections.

The chief minister refutes charges that the commission has been set up to drag the case and gain political mileage out of the incident. He says the first task before the commission is to fix the quantum of compensation afresh. All the cases in which victims were denied compensation were also being re-examined. Nitish is said to have been particularly distressed that in the past 18 years, very few accused in communal carnages have been convicted. "Investigations, trial and conviction have to be hastened," he says. But the task before Sharma is indeed a tough one. As DIG (CID), he was witness to trials being delayed, if not messed up, to let the accused go scot-free. "Though a total of 893 cases were registered, 615 cases were closed. I reviewed the closed cases and found to my shock that there was strong evidence against most of them. Even cases involving the main accused Kameshwar Yadav were closed. I got 29 cases, including two in which Kameshwar's name figures, reopened," he said.

People in Bhagalpur say they had managed to put the carnage behind them and were trying to get on with their lives but the hype created by the Government over the Logain trial and conviction will only help reopen old wounds. That seems to matter little to the politicians for whom the end matters, whatever the means may be. ■

TOLL AND TURMOIL



GORY PAST: The riots and after

- Immediately after the riots, 1,061 people including 1,002 Muslims, were reported to be killed.
- By a July 1990 count, 1,053 were said to be massacred including 940 Muslims and 113 Hindus.
- In June 1992, the administration's supplementary list said 637 more were killed, taking the toll to 1,690.
- Concentrated killings took place in Logain (116), Chanderi (78) and Parbatti (23).
- A total of 893 cases were registered but in 615 cases final reports were submitted—even in the cases in which strong evidence existed.